

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

7. STUART REMINGTON V. BRITTANY REMINGTON

24FL0061

On April 15, 2026, Respondent filed a Request for Order (RFO) seeking to compel further discovery responses and sanctions. The RFO and supporting documents were served on April 16th, though it appears the Notice of Tentative Ruling and blank FL-320 were not served.

Petitioner filed and served a Responsive Declaration to Request for Order and a Declaration of Stephen M. Sirota on May 7th.

Respondent asks the court to compel further discovery responses to Requests for Production of Documents, Set Two.

Petitioner opposes the motion and the requested sanctions on the basis that the motion is untimely. He further asks for sanctions against Respondent in the amount of \$1,600 pursuant to Civil Procedure § 2031.310 and § 2023.030.

On receipt of responses to requests for production of documents, the requesting party may move for an order compelling further responses where the initial production is not in compliance with the Civil Discovery Act. Cal. Civ. Pro. § 2031.310. That said, a motion to compel further responses shall (1) be filed and served within 45 days (50 with mailing) of the date the responses were served (Cal. Civ. Pro. §2031.310(c)); (2) be accompanied by a meet and confer declaration (Cal. Civ. Pro. § 2031.310(b)(2)), and (3) include a separate statement which complies with California Rules of Court rule 3.1345.

According to the filings of the parties, Petitioner served his discovery responses on January 22, 2026. That would make the 45 day deadline, March 8th. The motion was served electronically, which means the court need not account for the additional five days for mailing. Regardless, the motion was not filed until April 15th, almost a month after the deadline. As such, the RFO is denied as untimely.

Sanctions are mandatory for one who “unsuccessfully *makes or opposes* a motion to compel a response...unless [the court] finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust” Cal. Civ. Pro. § 2031.300(c). Where sanctions are awarded, the amount imposed is to include “...the reasonable expenses, including attorney’s fees, incurred by anyone as a result of...” the conduct of the party subject to sanction. Cal. Civ. Pro. 2023.030(a). A party requesting sanctions must establish that the amount requested is reasonable, was incurred as a result of discovery abuse, and the requesting party must already be liable for

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those expenses before the court can award the costs as sanctions. See Tucker v. Pacific Bell Mobile Servs., 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions).

Petitioner maintains that he has incurred three hours worth of attorney's fees reviewing the moving papers, researching, and responding to the moving papers. He expects to incur an additional 1 hour in preparing for and attending the hearing. Regarding the amount Petitioner expects to incur, but has not yet been incurred, this amount is not recoverable. Regarding the remaining three hours, Petitioner has failed to establish the reasonableness of the amount allegedly incurred and a nexus between that amount and the untimely filing of the motion. Without having met his burden of proof the court is inclined to award only \$800 to account for two hours of time reviewing the motion and preparing the response given that the motion and responsive papers are rather short and the issue is straightforward.

Respondent is ordered to pay Petitioner \$800 as and for discovery sanctions pursuant to Civil Procedure § 2031.300(c). This amount is to be paid from Respondent's portion of the community property upon the final division of property.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE RFO IS DENIED AS UNTIMELY. RESPONDENT IS ORDERED TO PAY PETITIONER \$800 AS AND FOR DISCOVERY SANCTIONS PURSUANT TO CIVIL PROCEDURE § 2031.300(C). THIS AMOUNT IS TO BE PAID FROM RESPONDENT'S PORTION OF THE COMMUNITY PROPERTY UPON THE FINAL DIVISION OF PROPERTY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

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